



STEVENS TOWING CO., INC.

MARINE REPAIRS AND TRANSPORTATION SINCE 1913

TOWAGE AGREEMENT (Lump Sum)

THIS AGREEMENT dated this 15th day of January, 2025, (the "**Agreement**"), between Stevens Towing Co., Inc., a South Carolina corporation based in Yorges Island, South Carolina ("**Stevens**" or "**Tower**") and, Boston Harbor Shipyard and Marine, LLC (hereinafter "**Customer**").

WITNESSETH

ARTICLE 1. SERVICES.

Tower agrees to furnish its Tug Island Trader/maybe also Royal Engineer, Captain and Crew (hereinafter, collectively, the "**Tug**") to Customer and provide towage services ("**Towage Service**") at Customer's direction, to Customer's barge and/or other floating equipment (collectively, the "**Tow**"). Tower shall not be required at any time to proceed to any location at which the Tug and Tow cannot lie always safely afloat.

Customer shall tender the Tow to the Tug at Biblia Marine in Savannah, GA (location) on or about February 8th, 2025 (date), and Towage Service shall be complete upon delivery of the Tow to Boston Harbor Shipyard and Marine, LLC (location) ("**Destination**").

ARTICLE 2. TOWAGE CHARGES.

Customer shall pay Tower for the Towage Service the lump sum charge of \$145,500 ("**Towage Charges**"). Customer shall be entitled to free time of 0 (days) total, before tendering and after delivery, inclusively, after which demurrage shall accrue in the amount of \$ 650.00 per hour or \$7,500.00 per day, whichever is cheaper for customer. In addition, Customer shall be solely responsible for all port charges, agents, dockage fees, wharfage, pilots, import/export taxes at all ports, duties, freight taxes, fuel surcharges, and demurrage, as applicable. Payment of the Towage Charges is due in full upon delivery of the Tow to Destination. The Towage Charges shall become fully and irrevocably earned by Tower upon commencement of the Towage Service regardless of whether or not the Tow is lost, disabled, or the Tow and/or cargo aboard is unable or unfit to continue to destination. Payment of the Towage Charges is due in full seven (7) working days after invoicing by Tower without any set-off, counter claim, or deduction.

ARTICLE 3. CONDITION OF THE TUG.

While nothing contained in this Agreement shall be construed as a warranty of seaworthiness of the Tug, Tower covenants that, at the time of commencement of the Towage Service, the Tug shall be in seaworthy and serviceable condition to the extent due diligence can make it so and that all applicable and required Tug certificates, licenses, and documents shall be valid and current.

ARTICLE 4. TOW WARRANTED SEAWORTHY.

- a. Customer warrants and represents that the Tow shall at all times be seaworthy and in all respects ready for and capable of making the specified voyage.
- b. Unless otherwise agreed by signed writing, Tower shall provide the towing bridle, shackle, fishplate, and shock line. Customer shall provide the emergency tow wire.
- c. Tower shall be responsible for making up the Tow and for determining the method and position in which Tow shall be towed and the time of sailing.
- d. Upon delivery of the Tow at the Destination, Customer shall sign a "Statement of Delivery and Acceptance" after inspection of the Tow. Unless otherwise noted on that Statement, the Tow shall be presumed delivered in good order and condition.
- e. Customer hereby indemnifies and holds Tower and the Tug harmless from any and all loss, damage, or liability arising out of or in any way caused by the unseaworthiness of the Tow or by any deficiency in, or failure of, Customer's equipment.

ARTICLE 5. VESSEL SUBSTITUTION.

Tower shall have the right to substitute the Tug identified herein with another of like kind and capability without prior notice to Customer. Any such substitution shall not alter the terms, covenants, or conditions of this Agreement. Tower shall have the right to delegate any of its duties under this Agreement to an affiliate or successor in interest, provided that no such delegation or assignment shall diminish Tower's responsibility to Customer.

ARTICLE 6. CARGO HANDLING.

Customer shall be solely responsible for all cost, risk, and expense of loading, stowing and discharging any cargo, equipment, or gear from the Tow. The positioning, tie downs, blockage and securing of the cargo, equipment, or gear, and all other aspects of stowage and securing of same shall be the sole responsibility of the Customer. Customer hereby indemnifies and holds Tower and the Tug harmless from any and all loss, damage, or liability arising out of or in any way caused by the cargo handling activities referenced in this paragraph.

ARTICLE 7. INSURANCE.

During the period of performance under this Agreement, Customer shall procure and maintain, or arrange to be procured and maintained, free of expense to Tower, and during the entire period of performance of this Agreement, the following insurance with companies satisfactory to Tower:

- a. Hull and Machinery Insurance upon the Tow in an amount equal to its full actual value, and Marine Cargo Insurance on any cargo aboard the Tow in an amount equal to its full actual value at destination on terms equivalent to the broadest coverage available from American Underwriters, provided, any deductible or franchise shall not exceed an amount satisfactory to Tower and shall be for the account of Customer and/or cargo owner; and
- b. Protection and Indemnity Insurance insuring its liability as owner or demise owner of the Tow for, without limitation, wreck removal expenses and for third-party claims (including those involving its employees) arising from death or personal injury, or from loss of or damage to property, with a minimum limit of \$1 million applicable to any one accident or occurrence, provided, any deductible or franchise shall not exceed an amount satisfactory to Tower and shall be for the sole account of Customer;
- c. Pollution Insurance – If any cargo aboard the Tow consists of oil or hazardous substances in such amounts as may be agreed upon and shall be for the sole account of Customer.

Customer shall provide proof of said Insurance to Tower and that such insurance waives subrogation against Tower. Each of the aforesaid policies shall provide for ten (10) days' notice to Tower of cancellation or modification.

Insurance on "project cargo" is to include Delayed Completion Coverage and waive subrogation against Tower.

ARTICLE 8. TOWER'S LIEN.

Tower shall have a maritime lien on the Tow and on all cargo, equipment, and gear aboard the Tow, as well as any freight pending for same, to secure payment of any amounts due under this Agreement, including General Average contributions. Customer will not suffer, or permit to be continued, any lien or encumbrance against the Tug.

ARTICLE 9. LIMITATION ACT.

It is agreed that Tower and the Tug shall have the benefit of all exemptions from and limitations of liability to which an owner of a vessel is entitled under the applicable limitation of liability statutes of the United States. Nothing contained in this Agreement shall be construed to deprive Customer of any other right to limit its liability. This Agreement shall be construed as a contract for towage services and shall not be construed as a charter hire of the Tug or in any fashion construed as a personal contract.

ARTICLE 10. FORCE MAJEURE.

Tower, the Tug and its owners, operators, agents and charterers shall not be responsible for any loss, damage, injury death, or delay or failure in performing this Agreement, arising or resulting from acts of God, perils of the sea, saving or attempting to save life or property at sea, latent defects in the Tug not discoverable by due diligence, public or proprietary acts of any governmental authority (whether executive, legislative, judicial or otherwise), labor disputes of whatsoever nature not attributable to a violation of law by Customer, criminal acts by third parties, war or other hostilities, acts of terrorism or riot or civil commotion, acts or omissions of Customer or cargo owner or the agents or representatives of either, or any other cause of any nature whatsoever to the extent it is beyond the control and without the sole fault of Tower.

ARTICLE 11. GENERAL PROVISIONS.

a. All notices and communications required by the terms of this Agreement from Tower to Customer and from Customer to Tower shall be made in writing and addressed to the respective address of the other party as follows:

IF TO STEVENS:	IF TO CUSTOMER:
Stevens Towing Co., Inc. Attn: Johnson Stevens or Ross Miller 4170 SC-165 Yonges Island, South Carolina 29449 Email: j.stevens@stevens-towing.com Email: r.miller@stevens-towing.com	<u>Boston Harbor Shipyard and Marine, LLC</u> Attn: <u>Marshall Greenland</u> <u>256 Marginal Street, East Boston, MA 02128</u> Email: <u>mgreenland@bhsmarina.com</u>

b. This instrument constitutes the entire agreement between the parties regarding the Towage Service. Neither party is relying or may rely on any collateral, prior, or contemporaneous agreement, assurance, representation or warranty not set forth in this instrument, whether written or oral. No modification of this instrument shall be implied by law, equity, or admiralty, and no modification shall be effective unless in writing signed by the parties hereto.

c. In the event Customer fails to remit full payment when due, Tower shall be entitled to charge to and recover from Customer all costs and expenses of collection, including court costs, survey costs, and reasonable attorneys' fees. All sums due and to become due under this Agreement, if unpaid when due, shall bear interest at the rate or twelve percent (12%) per annum from and after the rate upon which the same shall have become due and payable pursuant to the terms of this Agreement until paid in full.

d. Captions used in this Agreement are for convenience of reference only and shall have no force or effect or legal meaning in the construction or enforcement of this Agreement.

e. This Agreement shall inure to the benefit of and be binding upon both parties, their successors, and permitted assigns.

f. The rights and obligations of Stevens and Customer shall be governed and determined by the general maritime law of the United States, supplemented, as applicable, by the laws of the United States Code and the State of South Carolina. Customer hereby submits to the exclusive personal jurisdiction and service of process of the state and federal courts within the State of South Carolina and such other jurisdictions in which the vessel may be found (including federal courts within said state) with respect to any dispute arising out of or in any way related to this Agreement. The prevailing party in any such suit, action, or proceeding shall be entitled to recover its costs of suit and reasonable attorneys' fees.

g. If any term or provision or any part of any term or provision of this Agreement is held by any court or other competent authority to be illegal or unenforceable, the remaining terms, provisions, rights and obligations shall not be affected.

h. All obligations and liability of Customer to indemnify, defend and hold Tower harmless pursuant to the terms of this Agreement shall survive termination, cancellation or expiration of this Agreement.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized officers on the date first written above.

STEVENS TOWING CO. INC.

Boston Harbor Shipyard and Marine, LLC

SIGNATURE: _____

SIGNATURE: _____

BY: _____

BY: _____

ITS: _____

ITS: _____

DATE: _____

DATE: _____